

-

File No.: EXP202404457

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 7, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 7, 2024, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against EDITORIAL PLANETA, S.A. (hereinafter, the respondent) for not having duly addressed his rights of access and limitation.

The complainant, upon learning that his data had been registered in a solvency file due to a debt, sent a letter to the respondent requesting "(...) all the necessary documentation informing me of the reason for such a claim and how the amount, principal, applied interests, commissions, etc., was generated, in order to verify that they conform to the original signed contract, of which I also request a copy. (...)", as well as the precautionary removal of his data from said files, stating that he had not received the legally established response.

He attached, along with his complaint, a copy of the request, proof of its sending dated December 7, 2023, and proof of delivery to the respondent dated December 12, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On May 22, 2024, a response was received by this Agency indicating that: "[The complainant] incurred a debt with Editorial Planeta, which is why the respondent proceeded to include him in a solvency file, as was informed to him by letter sent on June 22, 2023.

That, despite the fact that, as of today, [the complainant] has not settled the aforementioned debt, on April 8, 2024, the precautionary removal of his data from the Asnef Equifax file was carried out. This decision was made because this party's intention is always to satisfy, as much as possible, the requests of our clients, and that the only purpose of this party with the inclusion of the complainant in the referenced file was to exercise any actions available to collect the debt owed, with no intention whatsoever to cause harm to the complainant. [...]

Additionally, we inform you that appropriate actions are being taken with the complainant to reach an amicable solution regarding the debt that he still maintains against this party.

No, we have not received a request for the exercise of data protection rights, regulated in Articles 15 to 22 of the GDPR. [...]

Since the complaint made by the interested party is not related to the exercise of the rights regulated in Articles 15 to 22 of the GDPR, this party considers that it is not appropriate to provide a response to the interested party in this regard. [...]

The precautionary removal of the data requested by [the complainant] from the solvency file was carried out on April 8, 2024, in which he had been included, and on May 17, 2024, a communication was sent to him via burofax, informing him of this procedure."

The respondent has provided a copy of the communication sent to the complainant dated January 24, 2024, in which they indicate that "(...) we attach a copy of the signed contract, which includes the price and conditions of the purchase," and, regarding the request for limitation, they state that a notice letter of inclusion in the Asnef-Equifax file was sent, and that this inclusion is motivated by the repeated non-payment of a debt.

Along with their response, they attached:

- A copy of the contract signed between the parties and a certified electronic contracting certificate dated March 3, 2021.
- A copy of the delivery note for the contracted products.
- A copy of the request for the right of access and right of limitation made by the complainant, stamped December 12, 2023, which coincides with the one sent by the complainant to the AEPD along with his

complaint.

- A copy of the communication dated January 24, 2024, made by the respondent to the complainant, which is returned by mail on February 16, 2024, in which the signed contract and the purchase conditions are attached. It refers to the sending of a letter on June 22, 2023, informing him of the possible inclusion in a insolvency file.

- A copy of the communication dated June 22, 2023, addressed to the complainant, in which he is informed of the existence of a debt and it is stated verbatim, "this communication serves as a payment demand for the aforementioned debt, which is made prior to the inclusion of your personal data in the delinquent file managed by ASNEF. We grant you an unextendable period of 15 days, starting from the receipt of this letter, to settle the aforementioned debt. If the amount owed is not received within the granted period, we will proceed to include your personal data in the aforementioned delinquent file (...)."

- A document that includes the data of the complainant's contracting file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

-

Documentation evidencing the sending of a PREMIUM BUROFAX to the claiming party on May 17, 2024, as well as its content.

THIRD: In accordance with Articles 64.1 and 65.5 of the LOPDGDD, the decision on the admission or inadmission of the claim must be notified to the claiming party within three months. If such notification does not occur after this period, when the claim concerns the lack of attention to a request for the exercise of rights, the procedure will be considered initiated from the date three months have elapsed since the claim was received by the Agency.

These provisions also apply to the procedures that the AEPD must process in the exercise of the powers attributed to it by other laws.

As stated, and considering that the claim was submitted to this Agency on March 7, 2024, the procedure for addressing the request for the exercise of rights is considered initiated on June 7, 2024. The aforementioned agreement granted the responding party a hearing period, so that within ten business days it could present the allegations it deemed appropriate. On September 6, 2024, the responding party submitted its allegations, reiterating the attached documentation that was presented in response to the transfer. Additionally, it includes a copy of a communication dated September 6, 2024, to the responding party, responding to its request for the right of access, in compliance with Article 15.3 of the GDPR.

In its writing, the responding party states that we are not dealing with a case in which the complainant wishes to legitimately exercise the rights recognized by data protection regulations, but rather that "(...) we are in a situation where the interested party, who owes Editorial Planeta the sum of (...) euros (...) intends to use this Agency, invoking data protection, in a clear abuse of rights, as a defensive tool to avoid facing the payment of their debt. (...)"

"(...) Editorial Planeta did not receive from the complainant the access request that this Agency interprets. If anything, and only, a request for their right to limit processing, a right that Editorial Planeta duly attended to.

(...) This party understands that in their correspondence sent to Editorial Planeta on December 12, 2023, the complainant does not exercise their right of access.

The responding party indicates that "(...) the central object of the request that Editorial Planeta received from the complainant was not a right of access in the sense of Article 15 GDPR. The complainant at no time asked to know whether Editorial Planeta retained and used their personal data, for what purpose they were processed, whether they had been provided to third-party recipients, what their retention period was, their origin, or, if applicable, whether there were automated decisions.

C/ Jorge Juan, 6

www.aepd.es

4/14

What the complainant requested was only to know the economic conditions of their debt (which is to say, to be unaware) and to receive a copy of the contract to verify them. These are matters more typical of Consumer and User Law, which exceed the matters and issues of Personal Data Protection, which are the responsibility of this Agency.

Before concluding this section, we must say that Editorial Planeta obviously sent the complainant, a few days later, a copy of the contract sent, thus responding to their request.”

The responding party continues to indicate that, regarding the right to limit processing, it attended to their request and proceeded to the precautionary removal of their data from the Asnef-Equifax file on April 8, 2024, as stated in the burofax sent to the claiming party on May 17, 2024, which has already been attached to this Agency.

It also adds that, regarding the debt for which the claiming party's data has been included in the solvency files, it requested the debt on June 22, 2023, reiterated, moreover, in the communication of January 24, 2024.

“(…) Finally, and without prejudice to the above, we must add that Editorial Planeta has sent the complainant the communication that we attach as document 1, thus providing them with the same legal information established in Article 15 of the GDPR.

In this regard, we must clarify that with this Editorial Planeta is not interpreting, recognizing, or admitting to having received from them any request for the right of access. In this writing, we have already duly recorded and explained this, and the sending of this communication does not distort or contradict it.”

Finally, the responding party states that on September 6, 2024, it sent the claiming party a response to their request for the right of access, in compliance with Article 15.3 of the GDPR. In the response, it includes the communications made on June 22, 2023, January 24, 2024, and May 17, 2024, along with their attached documents, as well as extracts from their client file with a transcription of the pending dates and amounts.

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within ten business days, they may formulate the allegations they deem appropriate, not formulating allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/14

LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the

Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month and to prove that they had provided the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 7, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint presented was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/14

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be understood as granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others.

V

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise or defense of claims;
- d) the data subject has objected to the processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise or defense of claims, or for the protection of the rights of another natural or legal person or for important public interest reasons of the Union or of a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction."

It should be noted that the right to restrict processing enables the claimant to have the processing of data limited when the accuracy of the personal data is contested, for a period allowing the controller to verify its accuracy; when the processing is unlawful and the data subject opposes the deletion of the

personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has opposed the processing, while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VI

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, only the facts related to those rights will be analyzed and assessed, excluding the rest of the issues raised.

Article 4 of the GDPR, Definitions, provides that:

"For the purposes of this Regulation, the following shall be understood as:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;

(...)"

In the case analyzed, from the examination of the documentation provided, and taking into account what is indicated in the first paragraph of this legal basis, it has been established that the claimant exercised the rights of access and restriction.

-

Regarding the right of access to their personal data "(...) how this amount has been generated, principal, applied interests, commissions, etc., (...)", the responding party, despite indicating that what was requested by the claimant is not the right of access to their data regulated in data protection legislation, during the processing of this procedure, on September 6, 2024, sent the requested information.

Additionally, a copy of the communication sent to the claimant on January 24, 2024, is provided, in which they indicate that "(...) we attach a copy of the signed contract, which includes the price and conditions of the purchase."

Article 15 of the GDPR, Right of access of the data subject, provides that

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/14

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data

subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

Furthermore, the LOPDGDD regulates the right in its Article 13, in the following terms:

1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data concerning the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/14

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to the entirety. For these purposes, the communication by the controller to the affected party of how they can access this system shall suffice to consider the request for the exercise of the right as attended to.

However, the data subject may request from the controller the information referred to in the aspects provided in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it.

4. When the affected party chooses a means other than that offered which incurs a disproportionate cost, the request shall be considered excessive, and the affected party shall bear the excess costs that their choice entails. In this case, only the satisfaction of the right of access without undue delay shall be required from the data controller.”

For its part, the Guidelines 1/2022, adopted on March 28, 2023, which approves the Application Guide for Article 15 of the GDPR, regarding the Right of Access of the Data Subject, indicate concerning access through the copy modality that:

“150. In this context, it is important to remember that there is a distinction between the right to obtain access under Article 15 of the GDPR and the right to receive a copy of the administrative documents regulated by national law, the latter being a right to always receive a copy of the actual document. This does not mean that the right of access provided for in Article 15 of the GDPR excludes the possibility of receiving a copy of the document or of the means in which the personal data appear.

151. In some cases, the personal data themselves establish the requirements in what format the personal data must be provided. When the personal data constitutes, for example, handwritten information by the data subject, in some cases the data subject must receive a photocopy of such handwritten information, as the writing itself is personal data. This could be especially the case when handwriting is something that matters for processing, for example, handwriting analysis. The same generally applies to audio recordings, as the voice of the data subject is personal data. However, in some cases, access may be granted by providing a transcript of the conversation, for example, if agreed between the data subject and the data controller.”

C/ Jorge Juan, 6

www.aepd.es

In relation to the above, it is necessary to bring to attention the Judgment of the Court of Justice dated May 4, 2023, in case C-487/21, which determines that

“28 Therefore, from the literal analysis of Article 15, paragraph 3, first sentence, of the GDPR, it follows that this provision grants the data subject the right to obtain an authentic reproduction of their personal data, understood in a broad sense, that are subject to operations that must be classified as processing by the controller of that processing.

(...)

32 Consequently, Article 15 of the GDPR cannot be interpreted as enshrining, in its paragraph 3, first sentence, a right distinct from that provided in its paragraph 1. Furthermore, as the European Commission has pointed out in its written observations, the term “copy” does not refer to a document as such, but to the personal data it contains, which must be complete. Therefore, the copy must contain all the personal data subject to processing.

(...)

44 Therefore, as emphasized by the Advocate General in point 61 of his conclusions, in the event of a conflict between, on the one hand, the exercise of the right to full and complete access to personal data and, on the other, the rights or freedoms of others, a balancing of the rights and freedoms in question must be carried out. Whenever possible, data communication modalities that do not infringe the rights or freedoms of others should be chosen, bearing in mind that, as stated in Recital 63 of the GDPR, such considerations should not “result in the refusal to provide all information to the data subject.”

45 In light of the above considerations, it is appropriate to respond to the preliminary questions one to three that Article 15, paragraph 3, first sentence, of the GDPR must be interpreted as meaning that the right to obtain from the controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties.”

In the same vein, the Judgment of the Court of Justice of the European Union dated June 22, 2023, in case C.579/2021, indicates that,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

“64 In this regard, the Court of Justice has already stated that the concept of ‘copy’ as used here refers to the authentic reproduction or transcription of an original, such that a purely general description of the data subject to processing or a reference to categories of personal data would not correspond to this definition. Furthermore, from the wording of Article 15, paragraph 3, first sentence, of that Regulation, it follows that the obligation to communicate is linked to the personal data that are the subject of the processing in question (see, in this regard, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 21).

65 The copy that the data controller must provide must contain all the personal data subject to processing, present all the characteristics that allow the data subject to effectively exercise their rights under that Regulation, and, consequently, reproduce those data in a complete and authentic manner (see, in this regard, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraphs 32 and 39).”

The right of access in its copy modality implies “...that an authentic and intelligible reproduction of all those data is provided to the data subject,” and, likewise, “This right includes the right to obtain a copy

of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties,” which entails that each specific case must be examined.

As a consequence of the above, it is appropriate to uphold, for formal reasons, the claim presented regarding the right of access to personal data, as it has been fully addressed once the legally established period has elapsed, through the presentation of the copy of the requested documents. Regarding the right to restriction, the respondent has stated that there is an outstanding debt owed to the respondent, which has been communicated to this Agency during the processing of the present procedure, and regarding which there is no record of it being contested before the competent authorities.

The right to restrict processing enables the claimant to have the processing of the data limited when the accuracy of the personal data is contested, for a period that allows the controller to verify their accuracy; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has opposed the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/14

Similarly, the responding party has provided a copy of the communication sent to the claiming party dated January 24, 2024, in which it states that a notice letter of inclusion in the Asnef-Equifax file was sent on June 22, 2023 (of which a copy is also attached), and that this inclusion is motivated by the repeated non-payment of a debt.

Regardless of such circumstances, the responding party was obligated to expressly respond to the request for precautionary cancellation within the legal timeframe, either by accepting or denying it. The fact that no response was given to this request implies that the right requested by the claiming party has not been addressed by the responding party.

Notwithstanding the above, upon becoming aware of this procedure, the responding party has proceeded with the precautionary cancellation of the data in the solvency files and has communicated this to the claiming party, which implies that the responding party has attended to the request once the present procedure was initiated.

Consequently, it is appropriate to uphold, for formal reasons, the claim presented regarding the right of limitation, given that, after the submission of the claim on May 17, the responding party proceeded to communicate the precautionary cancellation effective from April 8.

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdictional scope of the Spanish Agency for Data Protection to resolve the conflict underlying between the parties, nor to enter into assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against EDITORIAL PLANETA, S.A. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to EDITORIAL PLANETA, S.A.

In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public

once it has been notified to the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

14/14

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es